

warn opposing counsel, if counsel's identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading." (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 203.) Here, neither the Opposition nor the declaration of Jonathan Fu in support of the Opposition show that this occurred. (Opposition, pp. 1-14; Decl. of Jonathan Fu ISO Opposition, ¶¶ 1-7.)

Third, the minute order dated March 13, 2026, for this case states, "DEFENDANTS HAVE BEEN SERVED ON THE CASE. DEFENDANTS NEED TIME TO ANSWER AND OR ATTEMPT INFORMAL SETTLEMENT." (Opposition, Exh. 3.) Plaintiffs' counsel was present for this case management conference and nonetheless, despite that order, proceeded to file the request for entry of default just 3 business days later, on March 18, 2026.

Ruling

For the reasons discussed above, Defendants' motion to vacate default is **GRANTED**. Defendants shall file their answer or responsive pleading within 10 days of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. SMITH & COMPANY RESTORATION PRODUCTS, INC.
***HEARING ON MOTION IN RE: SANCTIONS, ATTORNEY'S FEES AND FILING FEES AGAINST PLAINTIFF PURSUANT TO CCP 128.5**
FILED BY: SMITH & COMPANY RESTORATION PRODUCTS, INC.
TENTATIVE RULING:

The Court on its own motion continues this hearing to October 23, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C25-03739
CASE NAME: SCOTT MCCOY VS. EXACT HOME BUYERS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RODRIGUES, DEREK
TENTATIVE RULING:

This hearing is **continued to November 6, 2026** at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) and section 435.5, subdivision (a) state nearly identical language concerning meet and confer obligations on a demurrer and motion to strike. The language is as follows:

Before filing a [demurrer / motion to strike] pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the [demurrer / motion to strike] for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the [demurrer / motion to strike]. *If an amended [complaint, cross-complaint, or answer /pleading] is filed, the responding party shall meet and confer **again** with the party who filed the amended pleading*

before filing a [demurrer / motion to strike] the amended pleading.

(Emphasis added.)

Rodrigues and Re/Max have failed to show a compliant effort to meet and confer on the amended pleading which is the subject of the present motions. While their attorney declares that she met and conferred with counsel for the plaintiffs, a close reading of the declaration and the briefing demonstrates this effort was made prior to the amendment. This does not meet the statutory requirement that she meet and confer again before filing a the demurrer and motion to strike targeted at the amended complaint.

Additionally, the Declaration of Shannon B. Jones is not signed. "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7 (a), emphasis added.) The declaration filed on April 24, 2026 is stricken.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutes. Re/Max and Rodrigues shall file and serve a new declaration showing compliance with the meet and confer requirements by October 9th. If the parties reach an agreement about any of the matters raised in the motion, the declaration shall include a description of these matters.

13. 9:00 AM CASE NUMBER: C25-03739
CASE NAME: SCOTT MCCOY VS. EXACT HOME BUYERS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: RODRIGUES, DEREK
TENTATIVE RULING:

Please see Line 12.

14. 9:00 AM CASE NUMBER: MSC21-01379
CASE NAME: MOFFETT VS. SONIC WALNUT CREEK
***HEARING ON MOTION IN RE: POST-JUDGMENT ATTORNEY'S FEES AND COSTS/CONT'D FROM 8/24/2026 TO 9/18/2026 PER TR**
FILED BY: MOFFETT, JAMES
TENTATIVE RULING

The Court finds the costs described by the Plaintiff to be reasonable, as to the hourly rates charged, the number of hours expended and the lodestar multiplier. The Court grants the Plaintiff's motion for Post-Judgment Attorneys' Fees and Costs in the following amounts: **\$7,816 in post-judgment attorneys' fees** (representing \$7,899.00 minus \$83 for the cost of the revised writ of execution) and **\$544.77** in post-judgment costs. The total of **\$8,360.77** is due to Plaintiff's attorneys 30 days from the date of service of notice of entry of this order.